

O&M AGREEMENT

by and between

[SPANERCOM LTD]

AND

[PHOENIX HELLAS]

CONTENTS

1	DEFINITIONS	5
2	INTERPRETATION	10
3	DURATION.....	11
4	ENGAGEMENT OF OPERATOR AND SCOPE OF SERVICES	11
4.1	General Obligations.....	11
4.2	Site Maintenance, Waste and Hazardous Materials.....	11
4.3	Manufacturer's Warranties.	11
4.4	Maintenance and Repair	12
4.5	Guaranteed Performance Ratio.....	13
4.6	Guaranteed Availability	Error! Bookmark not defined.
4.7	Emergency.....	13
4.8	Spare Parts	13
4.9	Interface with the EPC Contractor	14
5	FEES	14
5.1	General obligations	14
5.2	Fees for Additional Services and Emergency Services	15
5.3	Payments.....	15
5.4	Disputed Payments.....	15
6	TAXES AND DUTIES	15
7	VARIATION ORDERS	15
8	REPRESENTATIONS, WARRANTIES AND OTHER OBLIGATIONS OF THE OPERATOR.....	16
8.1	Representations and Warranties.....	16
8.2	Other Obligations of the Operator	17
8.3	Compliance with Statutes and Statutory Declaration	17
8.4	Co-ordination with the Company and Competent Authorities	18
8.5	Reporting Obligations.....	18
8.6	Protection of the Environment.....	19
8.7	Security of and access to the Site	19
8.8	Pass-Through Principle	19
9	INSURANCES	19
10	LIABILITY	19
11	SECURITY.....	20
11.1	Performance Bond.....	20
12	TERMINATION BY THE OPERATOR	21
13	TERMINATION BY THE COMPANY.....	21
14	REVERSIBILITY	22
15	INDEMNITY	23
16	FORCE MAJEURE	24
17	CONFIDENTIALITY	24
18	CHANGE IN LAW	25
19	GOVERNING LAW.....	25

20	DISPUTE RESOLUTION.....	25
20.1	General terms.....	25
20.2	Mediation.....	26
20.3	Arbitration	26
21	MISCELLANEOUS.....	26
21.1	Waiver	26
21.2	Survival	26
21.3	Amendments and Assignment	27
21.4	Severability	27
21.5	Further Assurances.....	27
21.6	Conflict of Interest.....	27
21.7	Entire Agreement	Error! Bookmark not defined.
21.8	Counterparts	27
21.9	Subcontract	27
21.10	Intellectual Property.....	27
21.11	Relationship between Parties.....	28
21.12	No Liens or Encumbrances	28
	ANNEX 1: SCOPE OF SERVICES	30
	Overview	30
	General System Operation and Maintenance	30
	Continuous System Monitoring.....	30
	Preventive and Scheduled Maintenance	31
	Customer Service Support	32
	Warranty Administration and Spare Parts Management	32
	ANNEX 2: OPERATION AND MAINTENANCE ANNEX.....	35
	ANNEX 3: SPARE PARTS AND CONSUMABLES.....	37
	ANNEX 4: GUARANTEED RATIOS – LIQUIDATED DAMAGES	38

This agreement (hereinafter referred to as the “**Agreement**”) is made and executed on [●] (“**Effective Date**”)

BY AND BETWEEN;

[SPANERCOM LTD], a company incorporated in accordance with the laws of the Republic of Cyprus under the number 396638, whose registered office is at Aretousas 14, 6036, Larnaca , Cyprus, represented by Mr Argyris Georgiou (hereinafter referred to as the “**Company**”).

AND

[PHOENIX HELLAS], a company incorporated in accordance with the laws of Greece under the number 159838501000, whose registered office is at Valaoritou 4, PO 10671, Athens, Greece, represented by Mr Fayssal Frem (hereinafter referred to as the “**Operator**”).

Operator and the Company are hereinafter defined individually as the “**Party**” and collectively as the “**Parties**”.

RECITALS:

1. the Operator is a leading company in the operation and maintenance services of utility scale solar electric facilities;
2. the Company wishes to engage Operator to operate and maintain the Solar Power Plant;
3. the Operator has agreed to operate and maintain the Solar Power Plant on the Site subject to the terms and conditions of this Agreement.

NOW THEREFORE, in consideration of the foregoing and other good valuable considerations, the receipt and sufficiency of which is hereby acknowledged, the Parties hereto agree as follows:

1 DEFINITIONS

The following words and expressions appearing in this Agreement shall have the meanings as defined here in this Clause, unless the context requires otherwise;

“Additional Services” means any addition to or modification of the Services, other than an Emergency Service.

“Additional Service Fees” has the meaning given to that term in Clause 7.

“Affiliate” means, with respect to any person, any other person that directly or indirectly through one or more intermediaries controls or is controlled by or is under common control with that person; the terms controls, controlled by and under common control with mean the possession, directly or indirectly through one or more intermediaries, of more than fifty per cent (50%) of the outstanding voting stock of, or the power to direct or cause the direction of the management policies of, any person, whether through ownership of stock, as a general partner or trustee, by contract or otherwise.

“Agreement” means this document encompassing all the terms, conditions and features in respect of the Services, together with all annexes as from time to time supplemented, modified or replaced by written agreement between the Company and the Operator.

“Annual Liability Cap” has the meaning given to this term in Clause 10.b.

“Applicable Law(s)” means all national (or state) legislation, statutes, ordinances and other laws, and regulations and by-laws of any legally constituted public authority, or Laws of Cyprus or any international law or treaty (to the extent having been ratified in Cyprus), national or county law, order, rule, regulation, statutory order, statutory reversionary order, executive order, decree, policy, judicial decision, administrative decision or operating procedures made or required pursuant thereto, or legally binding instruction, guideline, code or standard issued by an executive, legislative, judicial or administrative entity applicable in Cyprus, including in relation to any Taxes, as any of them may be amended from time to time, to the extent that they apply to and are binding upon, as the context may require, the financing agreements and/or the subject matter of this Agreement.

“Approvals” shall mean all Authorizations, consents, approvals, notifications and permissions and any license, permit, ruling, exemption or other authorization of whatsoever nature which is required to be obtained under Applicable Laws for or in respect of this Agreement including for the performance of any obligation or exercise of any right by a Party under this Agreement, as well as the approvals and consents required from the Company or any other authority pursuant to this Agreement.

“Authorisation” means any **authorisation**, approval, license, permit, concession or other permission granted or to be granted by a Governmental Authority (a) which relates to, or is required for, or affects the validity or exercise of rights or performance of obligations under this Agreement, any of the Financing Agreements, or any subcontracts entered into by any of the parties to the Project Agreements or (b) required to carry on business as an electric power producer in Cyprus;

“Business Day” shall mean any day (excluding Saturday and Sunday) on which banks are open for domestic business in Cyprus.

“Change in Law” means:

- i. the enactment, adoption, promulgation, amendment, bringing into effect, modification or repeal after the Effective Date of any applicable law, decree, treaty, rule, ordinance, code or regulation (including any law, decree, treaty, rule, ordinance, code or regulation related to Tax matter);
- ii. a change in the interpretation of any applicable law, decree, treaty, rule, ordinance, code or regulation which was in force as of the Effective Date (including, but not limited to, the legality of this Agreement, or the pricing mechanism); or

- iii. the imposition of any additional requirement, consent or condition (A) on the issuance or renewal of any applicable permit after the Effective Date, or (B) for the operation and maintenance of the Solar Power Plant (notwithstanding the general requirements contained in any applicable permit at the time of application or issue to comply with future laws, ordinances, codes, rules, regulations or similar legislation).

“Client” means the Company’s client under the Power Purchase Agreement, and representative appointed by such Client.

“Commencement Date” shall mean the date mentioned as Commencement Date in Notice for Commencement.

“Company’s Requirements” shall mean all the requirements specified expressly in this Agreement.

“Competent Authority(ies)” shall mean the Government and its bodies, all national, state, local, regional, territorial or municipal government, ministry, government department or body, commission, board, bureau, agency, instrumentality, executive, legislative or administrative body, official or public or statutory person or other authority or body having jurisdiction, including any successor to such authorities and anybody entrusted with its functions and capabilities and the central bank or other fiscal, monetary regulatory, self-regulatory authority.

“Confidential Information” shall mean the Agreement and everything contained therein, all documentation, data, particulars of the Services and technical or commercial information made by (or on behalf of) the Company or obtained directly or indirectly from the Company or the Company’s Representative by the Operator or which is generated or obtained by the Operator in relation to the Services or any information or data that the Operator receives or has access to as a result of the Agreement, other than information which is generally available in the public domain other than by any unauthorized actions or fault of the Operator.

“Deemed Energy Events” means any of the following events:

- 1- a failure by the Buyer to take delivery of Electricity at the Delivery Point (when Electricity would otherwise have been available for delivery at the Delivery Point)
- 2- An event where the DSO exercises its rights to restrict the energy production
- 3- an Other Force Majeure Event affecting the Seller

“Defect Liability Period” means the period of twenty-four (24) months following the Project Hand-Over Date as defined under the EPC Contract and includes any extension thereof pursuant to the EPC Contract.

“Direct Agreement” means the direct agreement entered into between the Lenders, the Company and the Operator after the Effective Date.

“Effective Date” has the meaning given to that term in page four (4) of this Agreement.

“Emergency” means an event occurring at the Site or any adjoining property that poses actual or imminent risk of serious personal injury or death to any person, material physical damage to the Solar Power Plant or to the interconnection facilities requiring, in the good faith determination of Operator, immediate preventative or remedial action by Operator.

“Emergency Services” means such services (including remedial and preventative measures and mitigation efforts) as may be necessary in case of a situation of Emergency to ensure (a) the continued operation of the Solar Power Plant and (b) the safety of personnel and property at the Site.

“EPC Contract” means the engineering, procurement and construction agreement, entered into between the Company and the EPC Contractor for the design, construction and installation of the Solar Power Plant.

“EPC Contractor” means the contractor engaged by the Company to carry out the works under the EPC Contract. In this Agreement referred as Phoenix Hellas.

“Equivalent Project Relief” has the meaning ascribed to it in Clause 8.8.

“Facility” means the site on which the Solar Power Plant is located.

“Financing Agreements” means any loan, credit, hedging, swap security agreements, security, notes, indentures, guarantees, swaps, insurance products and other documents entered into by the Company with the Lenders to finance, refinance or otherwise in connection with the Project (including, for the avoidance of doubt, any working capital credit facility and any VAT credit facility) and associated logistical facilities or as security for such financing or refinancing, including all consents to and acknowledgements of assignments and direct agreements setting out the Lenders’ direct rights in respect of the documents assigned to them as security, intercreditor agreements, hedging agreements and other ancillary agreements entered into with any of the Lenders.

“Force Majeure” means an event or circumstance that is beyond the reasonable control of a Party (in the case of the Operator, acting as a reasonable and prudent operator of the Solar Power Plant), and which by the exercise of due diligence that Party is not reasonably able to prevent or overcome and includes (without limitation) the following (but only to the extent that it satisfies the foregoing requirements):

- (i) acts of God, including landslides, earthquakes, floods, tidal waves, washouts, lightning, storms and the elements;
- (ii) acts of the enemy, acts of terrorists, wars (declared or undeclared), insurrections, riots and civil disturbances, arrest and restraint of rulers and peoples, revolution;
- (iii) breakage, accident, sabotage or other damage to plant, machinery, facilities (including the Premises) or equipment of the Affected Party, provided that the Affected Party has acted in a proper and prudent manner with respect to such plant, equipment, materials or facilities and the maintenance and repair thereof;
- (iv) action or inaction by, or the order, judgment, ruling, decision, enforcement action, act or omission of any Governmental Authority;
- (v) the exercise of any emergency powers by any Governmental Authority;
- (vi) any order, direction, act or omission of the transmission system operator;
- (vii) strikes, lockouts, industrial and/or labour disputes and/or difficulties, work bans, blockades or picketing (but excluding strikes, lockouts, industrial and/or labour disputes and/or difficulties, work bans, blockades or picketing of the Affected Party’s own or any of its Affiliate’s, contractor’s or sub-contractor’s employees, unless they are part of a sector, regional or nationwide strike, lockout, industrial and/or labour dispute and/or difficulty, work ban, blockade or picketing); or
- (viii) equipment failures in the local electricity network or the transmission system,

but does not include:

- (i) either Party's lack of funds or finances; or
- (ii) an Insolvency Event

“Government” means the Government of Cyprus and any of its duly authorised agency, authority, department, ministry or person (whether autonomous or not).

“Governmental Authority” means the Government, parliament or any legislative organ, any county government, any court, tribunal, any ministry (department or division thereof), parastatals, any authority or division thereof (including any regional and local authorities and any authority regulating any free trade zones) and any agency or entity or other body owned or controlled by the Government of Cyprus and having statutory competence to regulate or promulgate rules and regulations governing or touching and concerning matters, transactions and issues contained in or relating to this Agreement.

“Governing Law” means the laws of England & Wales, without regards of conflict of law principles.

“Good Industry Practice” means those practices, methods and acts and the skill, diligence, prudence and foresight to be expected of a skilled and experienced engineering, procurement and construction contractor engaged in carrying out works of a similar scale, nature and complexity to the Works, in accordance with good standards of prudence, safety and reliability applicable to the international electricity generation industry and the solar PV energy industry, which would have been expected to accomplish the desired result with compliance with Laws and Approvals, reliability, safety and expedition (or where such practices, methods, techniques and standards do not exist or are less vigorous than those of International Electro-technical Commission (IEC) , with those of the IEC).

“Initial Services” means the operation and maintenance services to be performed by the Operator and as provided under ANNEX 1.

“Insolvency Event” means, in respect of a Party, that Party:

- files a voluntary application in or for liquidation, receivership or bankruptcy;
- is dissolved (other than pursuant to a permitted consolidation, amalgamation, or merger);
- becomes insolvent or is unable to pay its debts when they fall due;
- makes a general assignment, arrangement or composition with or for the benefit of its creditors;
- has a secured party taking possession of all or substantially all its assets or has a distress, execution, attachment, sequestration or other legal process levied, enforced, or sued on or against all or substantially all its assets., and such secured party maintains possession, or any such person is not dismissed, discharged, stayed or restrained, in each case within ten (10) days thereafter;
- is finally and validly declared and adjudicated to be liquidated, bankrupt or insolvent or a winding up petition is presented in respect of a Party and is not dismissed or stayed within ten (10) days;
- is subject to a resolution passed by its shareholders for the purposes of placing it in voluntary liquidation;
- is subject to an order by any court of competent jurisdiction for its winding up;
- is the subject of an appointment of an administrative receiver or receiver or receiver manager or like officer of the whole or part of its assets;
- is the subject of an appointment of an administrator, official manager or like officer in circumstances where the Party is or is likely to become insolvent;
- causes or is subject to any event with respect to it, which, under the applicable law of any jurisdiction, has an analogous effect to any of the events specified in (a) to (j) above (inclusive),

provided that the foregoing shall not include any voluntary proceedings for the purposes of amalgamation, reconstruction or reorganisation, unless such proceeding is taken at the request of or to meet the requirements of the Party’s creditors.

“Intellectual Property” means all current and future registered and unregistered patents, trademarks, designs, know-how, copyrights, models, applications for any of the foregoing, database rights, softwares, control systems,, circuit layouts, Confidential Information, proprietary information and all other rights resulting from intellectual activity in the industrial, scientific, literary or artistic fields.

“Lenders” means financial institutions from which the Company proposes to borrow money to finance the performance of its obligations under this Agreement.]

“Liquidated Damages” means the Performance Liquidated Damages.

“Maintenance Schedule” means the comprehensive maintenance schedule as per ANNEX 2.

"Notice for Commencement" shall mean the notice issued by the Company to the Operator for commencement of Services.

"Operator" has the meaning given to that term in page four (4) of this Agreement.

"Operator's Variation Proposal" has the meaning ascribed to it in Clause 7.

"Performance Bond" means an on demand performance bond in favour of the Company, in respect of the Operator's performance under this Agreement, for an amount of 7000 euro (Seven Thousand Euro), and which has been issued by a first-class bank.

"Performance Liquidated Damages" means the liquidated damages calculated in accordance with ANNEX 4.

"Power Purchase Agreement" means the lease agreement entered into between the Client and the Company.

"Premises" means the property upon which the Facility is located.

"Project Hand-Over Certificate" means a certificate issued by the Company to the EPC Contractor under the EPC Contract, confirming its takeover of the Site and the works under the EPC Contract.

"Project Hand-Over Date" means the date specified in the Project Hand-Over Certificate as to when completion under the EPC Contract has occurred.

"Site" means Anarita Project Site Location: Latitude / Longitude 34.757, 32.529, The details of the land plots are the follow:

S/N	Reg. No	Plot No.
1	2/97	113
2	2/101	117
4	2/189	206

"Services" means the Initial Services, and any Emergency Service or Additional Service.

"Service Fee" means, during the Term, 70000 euro (Seventy Thousand Euro) per year, which includes routine maintenance services, minor and major maintenance outages, all Spare Parts, and management and procurement of all Spare Parts.

"Solar Power Plant" means solar photovoltaic power plant (including all cables and other component necessary for its operation) owned by the Company and installs on the Site.

"Spare Parts" means the replacement parts for the operation and use of the Solar Power Plant.

"Spare Parts Inventory" means the inventory of Spare Parts maintained for the Solar Power Plant.

"Subcontractor" means:

- (i) any third party, other than Operator, but including all vendors, suppliers, service providers or subcontractor (of any tier) retained by Operator, and
- (ii) any third party at any tier retained by a person referred to in (a) above,

in each case, to perform or provide any part of the Services, or supplying any equipment, materials or consumables for Project.

"Tax" means all forms of taxation, duties, fees, imposts and levies including (but without limitation) income tax, sales tax, value added tax, service tax, entry tax, corporation profits tax, advance corporation tax, customs and other import and export duties, excise duties, stamp duty, social insurance, social welfare or other similar contributions and other amounts corresponding thereto and any interest, surcharge, penalty or fine in connection therewith which may be payable

worldwide by the Operator and any of their employees, and the words "Taxation" and "Taxes" shall be construed accordingly.

"Term" has the meaning given to that term under Clause 3.

"Standards and Requirements" means any applicable environmental laws and authorisations, any applicable regulation concerning health, safety and environment, including, but not limited to, Equator III principles, any regulations arising from applicable law, World Bank EHS guidelines, any local authority requirements (including, but not limited to, CERA), and in case of financing, all environmental and/or social requirements pursuant to any financing for the Project.

"Variation Order" has the meaning ascribed to it in Clause 7.

"Variation Request" has the meaning ascribed to it in Clause 7.

2 INTERPRETATION

In this Agreement, unless the context otherwise requires:

- (a) words denoting the singular number shall include the plural and vice versa;
- (b) any marginal notes, heading and bold typeface are only for convenience and shall be ignored for the purposes of interpretation of construction of the Agreement;
- (c) the term "including" shall mean "including without limitation", and any words introduced by those words or any similar expression shall be construed as illustrative only, and all derivatives of "including" shall be construed accordingly;
- (d) references to this Agreement or to any other agreement, deed or other instrument shall be construed as a reference to such agreement, deed, or other instrument as the same may from time to time be amended, varied or supplemented;
- (e) reference to any Party to this Agreement or any other agreement or deed or other instrument shall include its successors or permitted assigns;
- (f) a reference to any clauses, section, paragraph or annexure is, unless indicated to the contrary, a reference to the clauses, section, paragraph, annexure of this Agreement;
- (g) a reference to "this Clause" shall mean a reference to the Clause where such reference is inserted;
- (h) words denoting a person shall include an individual, corporation, company, partnership, trust or other entity;
- (i) references to dates and times shall be construed to be references to Cyprus dates and times;
- (j) references to the word "days" shall, unless otherwise indicated, mean Business Days;
- (k) In addition to the terms defined in Clause 1, certain capitalized terms are defined elsewhere in this Agreement and whenever such terms are used in this Agreement they shall have their respective defined meanings, unless the context expressly or by necessary implication otherwise requires;
- (l) references to specific legal or regulatory provisions shall be construed as including any legal or regulatory provision which subsequently amends, extends, consolidates or replaces the same or which has been amended, extended, consolidated or replaced by the same and shall include any and all subordinate instruments, orders, rules, regulations and bylaws made there under and any guidelines issued in respect thereof;
- (m) in event of any conflict or discrepancy between the Clauses of this Agreement and any ANNEX to this Agreement the Clauses of this Agreement shall prevail;

- (n) all the ANNEXES attached to this Agreement form an integral part of this Agreement;
- (o) any amendment to this Agreement and its ANNEXES shall be in writing and signed by both Parties; and
- (p) the failure of either Party to enforce any provision of this Agreement shall not be considered as a waiver of such provision or of the right of such Party thereafter to enforce the same.

3 DURATION

- (a) This Agreement shall come into force as of Effective Date and shall remain into full force and effect until 12 years from Commencement Date ("Term"), unless terminated for any reason in accordance with the terms of this Agreement. The Commencement Date shall be the date specified by the Company in its Notice for Commencement.
- (b) The Parties may extend the Term for such further period as may be mutually agreed between the Parties and such extended term of the Agreement shall be referred to as the "Term".

4 ENGAGEMENT OF OPERATOR AND SCOPE OF SERVICES

4.1 GENERAL OBLIGATIONS

- (a) On the terms and conditions set forth in this Agreement, the Company shall engage the Operator to perform the Services during the Term, and the Operator accepts such engagement and agrees to perform the Services in accordance with the provisions contained in this Agreement.
- (b) The Operator shall be responsible for all Services and all activities in respect of the operation, maintenance, overhaul and repair of the Solar Power Plant, including but not limited to, any unscheduled outage.
- (c) The Operator shall perform the Services in accordance with (i) the service standards set by the Company and as prescribed in ANNEX 1 hereto, (ii) Good Industry Practice, (iii) Applicable Laws, (iv) Standards and Requirements, and (v) the Company's Requirements.
- (d) The Operator shall obtain, maintain and comply with all Approvals for the duration of this Agreement.
- (e) The Operator shall execute and implement the Services in accordance with the timelines indicated in ANNEX 2.

4.2 SITE MAINTENANCE, WASTE AND HAZARDOUS MATERIALS

- (a) The Operator shall keep the Site free and clear from the accumulation of waste materials or rubbish caused or appeared during the performance of the Services and all of those shall be removed and disposed of by the Operator in strict compliance with Applicable Laws and in accordance with Good Industry Practice, and any health, hygiene, safety and environmental regulations in force at the Site.
- (b) The Operator shall be responsible for all hazardous substances, if any, discovered on the Site after the Project Hand-Over Date or delivered to the Site by the Operator and any of its Subcontractors, and for the record keeping relating thereto.

4.3 MANUFACTURER'S WARRANTIES.

- (a) Operator, acting as the Company's agent, shall secure and enforce warranties (including manage, supervise and verify that all third parties providing warranties for the Solar Power Plant promptly and diligently comply with all of their respective warranty obligations and coordinate, schedule and enforce the provision of all warranty work and coordinate with third parties providing such work) and administer any warranty claims related thereto ("Warranty Claims"); provided, however, that:

- (i) the Company shall cooperate as Operator may reasonably request in connection with administering such Warranty Claims; and
 - (ii) Operator shall not settle any Warranty Claim for less than the full value of such Warranty Claim, or on any other terms that would materially adversely impact the Plant, without the prior written consent of the Company.
 - (iii) Operator shall obtain market standard manufacturers' warranties on all equipment which are provided by the Operator. In the event that there are manufacturer's warranties which extend beyond the Term, the Operator shall transfer such warranties to the Company on or before the end of the Term;
- (b) Operator shall within ten (10) Business Days notify the Company, after obtaining knowledge of a Warranty Claim, of all material information possessed by Operator relating thereto and whether or not Operator intends to enforce such Warranty Claim and the timing of the commencement thereof.
- (c) The Operator shall not enforce any Warranty Claim without obtaining the prior written consent of the Company. If Operator enforces any Warranty Claim, Operator shall keep the Company reasonably informed of the status of such Warranty Claim and, in any case, shall provide information and documentation reasonably requested by the Company.
- (d) Notwithstanding the foregoing, upon written notice to Operator, the Company can elect to prosecute any Warranty Claim directly or through any other representative, and Operator agrees to reasonably cooperate with the Company or any appointed representative in the prosecution of such Warranty Claim.

4.4 MAINTENANCE AND REPAIR

- (a) No later than thirty (30) days prior to the commencement of each Service year
- (b) Operator shall prepare submit to the Company a scheduled maintenance calendar (an "Operation and Maintenance Plan") setting forth Operator's intended work plan for the Services and other related activities (including any Additional Services) for each calendar month during the following Service year as set forth in ANNEX 2 taking into consideration.
- (c) the Company shall provide comments to the Operation and Maintenance Plan, if any, to Operator within fifteen (15) days after Operator's delivery of such Operation and Maintenance Plan. Operator shall promptly either modify the Operation and Maintenance Plan based upon the Company's comments or notify the Company of any comments that it intends not to incorporate and the reasons therefor. In case of disagreement, the Operation and Maintenance Plan shall be made in accordance with the Company's Requirements.
- (d) The Operator shall notify the Company forty-eight (48) hours before any scheduled outage. The Operator shall keep the Company informed about the progress in resolving such scheduled outage. In case of unscheduled outage, the Operator shall promptly notify the Company, and in case of unscheduled outage probably lasting more than Five (5) hours, notify the Company on:
 - (i) the probable cause of such unscheduled outage;
 - (ii) the estimated capacity reduction;
 - (iii) the measure taken and to be taken to remedy such unscheduled outage; and
 - (iv) the estimated duration of such unscheduled outage,

remedying such unscheduled outage, the Operator shall notify the Company within twenty-four (24) hours of such remedy.

- (e) The Operation and Maintenance Plan shall specify the reason of each scheduled outage, the date, the duration of the outage, as well as the capacity reduction.
- (f) The Operator shall be entitled to withdraw the Solar Power Plant (or any part thereof) from operation in relation to the Operation and Maintenance Plan for periods not exceeding those specified in such Operation and Maintenance Plan.

4.5 GUARANTEED PERFORMANCE RATIO

- (a) From the Commencement Date until the end of the Term, the Operator guarantees that the performance of the Solar Power Plant for performance review period (as defined in ANNEX 4) will be in accordance with ANNEX 4 (the "Guaranteed Performance Ratio").
- (b) If and to the extent that the Solar Power Plant is affected by any of the following events, such events will be excluded from the performance calculation:
 - (i) Force Majeure;
 - (ii) periods of maintenance or shutdowns initiated by the Client;
 - (iii) any Scheduled maintenance initiated by the Operator;
 - (iv) a Change in Law event in accordance with this Agreement; and
 - (v) interruption or improper use of the Solar Power Plant by the Company.
 - (vi) Deemed Energy Events
- (c) If, at the end of any performance review period (as defined in ANNEX 4), the performance is less than the Guaranteed Performance the Operator will pay the Company the appropriate amount of Performance Liquidated Damages.
- (d) The maximum amount of Performance Liquidated Damages payable by Operator under this Agreement during any year shall not exceed an amount equal to [100%] of the Service Fee payable to Operator under this Agreement for that year.

4.6 EMERGENCY

- (a) If an Emergency event occurs, the Operator shall promptly inform the Company of such Emergency event indicating
 - (i) the probable cause of such Emergency event;
 - (ii) the estimated capacity reduction;
 - (iii) the measure taken and to be taken to remedy such Emergency event; and
 - (iv) the estimated duration of such Emergency event.
- (b) Upon the occurrence of an Emergency event, the Operator shall perform all Emergency Services (including, but not limited to, remedial and preventative measures) necessary to remedy and mitigate the consequences of such Emergency event in order to ensure, without limitation, the continued operation of the Solar Power Plant, the safety of personnel and property of the Site.

4.7 SPARE PARTS

- (a) All tools, Spare Parts and consumables required by the Operator for the performance of its obligations under the Agreement shall be provided by the Operator.

- (b) The Company will provide the Operator with inventory of the Spare Parts under ANNEX 3 of this Agreement.
- (c) The Operator shall procure equipment, tools and consumables that it requires for the performance of Services.
- (d) manage and store all Spare Parts.
- (e) The Operator shall at all times maintain an up-to-date Spare Parts Inventory, including invoices, batch numbers and date of acquisition therefore. The Operator will supply an update inventory when requested to do so by the Company.
- (f) All Spare Parts purchased by the Operator shall be free from all defects and conform in all respects with the requirements set out in this Agreement, Good Industry Practice, Standards Requirements and Applicable Laws.
- (g) Title in any Spare Parts and consumables shall pass to the Company at the earlier of (a) when it is incorporated into the Solar Power Plant and (b) when it is paid for by the Company. The Operator warrants that Spare Parts provided by and services performed by the Operator will be free from defects for twelve (12) months. The risk of loss of any Spare Parts and consumables shall pass to the Company when it is incorporated into the Solar Power Plant.

4.8 INTERFACE WITH THE EPC CONTRACTOR

If the Operator is appointed as EPC Contractor by the Company, then the Operator and the EPC Contractor will be considered as one and unique entity and responsible in case of any breach, act or omission causing any damage, and in that respect:

- (i) the Operator agrees to waive any and all rights to assert any and all defences, which it may have to a claim by the Company for the non-performance, inadequate performance or delay in performance under or in connection with this Agreement arising from the conduct of the EPC Contractor.
- (ii) The Operator shall coordinate and cooperate with all other contractors, including the EPC Contractor, and other persons involved in the construction or operation of the Solar Power Plant and all persons exercising rights over the Site to ensure the proper performance of the Services and to allow all other contractors and persons (including the EPC Contractor), as the case may be, to carry out their works and tests on the Site.

5 FEES

5.1 GENERAL OBLIGATIONS

- (a) As compensation for the Initial Services, the Company agrees to pay Operator the Service Fee in accordance with this Agreement.
- (b) The Service Fee, the Additional Services Fees and the fees for Emergency Services are, each of them, fixed and all-inclusive (including without limitation all taxes (but excluding Value Added Taxes which shall be indicated/added separately in the Operator's statements)) and duties including customs duties, and will not be adjusted to take account of any rises or falls in the cost of labour, goods and other inputs.
- (c) The Service Fee shall be paid in equal quarterly instalments on the last Business Day at the end of each quarter following the Commencement Date during the Term.
- (d) No amount will be paid by the Company to the Operator until the Company has received and approved the Performance Bond.
- (e) As of the second year, the Operator shall have the right to revise the Fees as deemed necessary. The Operator shall notify the Company within sixty days before the end of the second year of operation of the new proposed

fees. the Company shall have the right to reject the revised Fees. If the Parties fail to agree on an amount for the revised Fees, then the Operator shall have to right to terminate the contract.

5.2 FEES FOR ADDITIONAL SERVICES AND EMERGENCY SERVICES

- (a) Subject to Clause 5.1(b), as compensation for Additional Services, the Company shall pay the Operator the amount agreed under Clause 7.
- (b) Subject to Clause 5.1(b), as compensation for Emergency Services, the Operator shall send to the Company evidences of the disbursement it incurred in performing such Emergency Service. the Company shall pay the Operator on an “at costs” basis plus a mark-up of 25%. If the Company does not agree on the amount and evidences provided by the Operator, then the Parties shall negotiate in good faith such fees for Emergency Services.
- (c) Any fees for Emergency Services or any Additional Services Fees shall be paid in accordance with this Clause.

5.3 PAYMENTS

The Company shall pay the undisputed amount of each invoice within fifteen (15) days after the Company’s receipt of such invoice provided that the Company has simultaneously received all supporting documentation that may be required and in the format to be agreed by the Parties in advance.

If (i) the Company fails to pay undisputed invoiced amounts by the due date for payment, the Contractor shall be entitled to interest on such late payment at a rate of EIBOR+ 2% from the due date for payment until the date that such payment is made.

5.4 DISPUTED PAYMENTS

In the event that the Company disputes any portion of an invoice submitted by Operator, the Company shall pay the undisputed portion thereof when due and shall pay the disputed portion to the extent that the dispute is resolved by mutual agreement or in accordance with the dispute resolution procedures set forth in Clause 20.

6 TAXES AND DUTIES

- (a) The Operator is responsible for the Service Fee which includes, all taxes, duties, royalties, levies and charges assessed against the Operator, its subcontractors or their employees irrespective of where they arise.
- (b) The Operator shall indemnify the Company for any actions, demands, claims, suits, expenses, damages, losses, liabilities, costs, fines, and proceedings (including court costs and reasonable legal fees) incurred by the Company as a result of the Operator’s failure to pay any amounts with respect to such taxes or levies for reasons attributable to the Operator.

7 VARIATION ORDERS

- (a) The Company shall have the right to request Additional Services by submitting a request in writing to the Operator (a “**Variation Request**”).
- (b) As soon as after having received a Variation Request, but not more than thirty (30) Business Days from its receipt, the Operator shall prepare and forward to the Company in writing a proposal (“**Operator’s Variation Proposal**”), including:
 - (i) a quotation for the price for the Additional Services and related change to the Service Fee (“**Additional Service Fees**”);
 - (ii) a programme and timetable for implementation of such Additional Services; and

- (iii) an estimate of any impact of the proposed change on any Approval, warranty and any other terms or conditions of this Agreement.
- (c) Following receipt of the Operator's Variation Proposal:
 - (i) if the Company instructs the Operator to carry out such Additional Services, such Operator's Variation Proposal shall be deemed to be accepted by the Company and the Operator shall implement such Additional Services in accordance with and on the terms specified in the Operator's Variation Proposals (a "**Variation Order**") ;
 - (ii) if the Company refuses the Operator's Variation Proposal, the Company may comment on such Operator's Variation Proposal, and the Parties shall negotiate in good faith to determine:
 - 1. the Additional Services Fees; and
 - 2. the Additional Services.
- (d) If the Parties do not agree on the terms of such Variation, or if the Company does not respond to the Operator's Variation Proposal, then such adjustments shall not be carried out by the Operator and no modification to the Services or the Service Fee shall apply.

8 REPRESENTATIONS, WARRANTIES AND OTHER OBLIGATIONS OF THE OPERATOR

8.1 REPRESENTATIONS AND WARRANTIES

As of Effective Date and during the Term, the Operator represents and warrants to the Company that:

- (a) it is a duly incorporated entity and validly existing under the laws of its country of incorporation and has full legal power and management approval to enter into and perform all its obligations under this Agreement and has taken and will take all necessary steps for the performance of its obligations under this Agreement;
- (b) it has been provided by the Company with all the information and documents required for the performance of this Agreement. The Operator has examined and discussed the Company's Requirements with the Company and is fully satisfied that there is no discrepancy, inconsistency, ambiguity or omission in the Company's Requirements;
- (c) it is fully experienced, qualified and capable to undertake the Services in a timely and efficient manner;
- (d) it will exercise all the skill, care and diligence as may be expected of a qualified, experienced and competent, while carrying out the Services;
- (e) it shall at all times comply with all Applicable Laws, ordinances, statutes, rules or regulations during the performance of the Services and it has obtained, shall maintain and comply with any Approvals required for the performance of the Services;
- (f) it shall perform the Services in accordance with the terms of this Agreement using technology, goods and material, equipment, standards of workmanship and fabrication consistent with accepted professional standards, codes of practice and regulations, the Company's Requirements and Good Industry Practice;
- (g) no legal proceedings against the Operator are pending or threatened, and no fact or circumstance exists which may give rise to such proceedings that would adversely affect the performance of its obligations under this Agreement; and
- (h) the Operator acknowledges that its agents and representatives have visited, inspected, observed and are familiar with the Solar Power Plant and physical condition relevant to the obligations of the Operator pursuant to this Agreement. The Operator is familiar with all the local conditions that may be or are material for due and proper

performance of its obligations under the Agreement, in respect of the Services to be performed by it. It has been provided with all the information and documents by the Company required for the execution of the Services. The Operator has examined and discussed the Company's Requirements with the Company and is satisfied that there is no discrepancy, inconsistency, ambiguity or omission in the Company's Requirements and it has access to the Solar Power Plant. The Operator bears the risk of incompleteness of or inaccuracy of any information provided to it or otherwise available to it.

8.2 OTHER OBLIGATIONS OF THE OPERATOR

- (a) In addition to the scope of Initial Services as provided under ANNEX 1, the Services shall include:
 - (i) the carrying out of duties and responsibilities in relation to the Services as may ordinarily and properly be carried out by independent professional consultant of a development having a similar size, purpose and characteristics to those of the Services.
 - (ii) in its capacity as a professional, the Operator has a general duty to provide information, regardless of the Company's expertise or knowledge and, accordingly, the Operator undertakes to advise and warn the Company during the performance of this Agreement in order that the Company may achieve its objectives under the best possible conditions;
 - (iii) the giving of such general advice and assistance to the Company (consistent with the scope of the Services) as the Company may from time to time reasonably require or which would be necessary for performing in a duly manner the Services; and
- (b) The Operator (i) shall use all reasonable skills and care on the basis of its technical knowledge, expertise, (ii) shall perform the Services which will, when completed, be adequate, accurate and sufficient and (iii) shall meet in all respects the requirements and standards as set out in this Agreement, Good Industry Practice and to be compliant with the Company's requirements as specified in this Agreement, as well as fit for the purposes intended.
- (c) The Operator agrees to perform the Services fully and faithfully in accordance with the Company's Requirements set out in, or reasonably to be inferred from, this Agreement to the satisfaction of the Company with respect to the Services and shall comply with any and all instructions and directions issued in accordance with this Agreement by the Company to the Operator (provided they are not unlawful) on any matter connected with or arising out of or under this Agreement with a view to the achievement of the timely and proper performance of the Services.
- (d) The Operator shall ensure that all Subcontractors or consultants are kept fully aware of relevant instructions and/or directions given by the Company and shall remain fully responsible to the Company for the performance of any of the Services undertaken by a sub-consultant/sub-operator.

8.3 COMPLIANCE WITH STATUTES AND STATUTORY DECLARATION

- (a) The Operator, while entering into this Agreement, shall comply with all requirements of the Applicable Law(s), rules and regulations including those pertaining to employment of labour or manpower.
- (b) Further, the Company shall ensure that all statutory compliances/certifications required to be obtained/maintained for the Solar Power Plant shall be timely arranged by it. All the necessary coordination with the statutory/other authorities in this regard shall be the responsibility of the company. All fees required to be paid in this regard shall be paid by the Company to the concerned authorities. The Operator shall give sufficient notice to the Company regarding such requirements where it is applicable.

8.4 CO-ORDINATION WITH THE COMPANY AND COMPETENT AUTHORITIES

The Operator shall perform the Services in co-ordination with the Company and Competent Authorities and their respective representatives, officers and employees in order to ensure the Services are fully in compliance with the requirements of the Company and to ensure the progress and timely completion of the Services.

8.5 REPORTING OBLIGATIONS

- (a) Operator shall maintain, in electronic format, a log of the maintenance and inspection reporting for the Solar Power Plant, including all service tickets opened in Operator's maintenance management system, utilization of Spare Parts and status of the Spare Parts Inventory (the "**Maintenance Inspection Log**"), which shall be made available at the Site for the Company's inspection. Operator shall provide the Company with:
 - (i) a monthly maintenance/inspection report for the Solar Power Plant (a "**Monthly Report**") for each calendar month of the Term within five (5) Days after the end of such calendar month; and
 - (ii) an annual maintenance/inspection report for the Solar Power Plant (an "**Annual Report**") for each year within fifteen (15) days after the end of such year (or, in respect of the last year, within fifteen (15) days after expiration or termination of the Term).
- (b) Each Monthly Report shall include, as a minimum, reporting on the following:
 - (i) operation activities, including any unscheduled outage;
 - (ii) Solar Power Plant production data;
 - (iii) the Maintenance Inspection Log for such month; and
 - (iv) the consumption of utilities and consumables.
- (c) Each Annual Report shall include, along with the requirements for the monthly report, as a minimum, reporting on the following:
 - (i) facility safety records and data, including any accidents which occurred at the Site during performance of the Services;
 - (ii) stock level of the Spare Parts Inventory and any other inventories; and
 - (iii) capital expenditure (if any) of the Company.
- (d) In addition to the reporting obligations provided herein, Operator shall:
 - (i) provide such assistance as may be necessary to enable the Company to comply with its books, records and auditing obligations;
 - (ii) comply with any reporting obligations of the Company that are agreed between the parties as being the responsibility of the Operator;
 - (iii) provide the Company with copies of all recommendations from the Solar Power Plant equipment suppliers and manufacturers;
 - (iv) provide the Company with any and all other information reasonably requested by the Company to enable the Company to discharge its obligations; and
 - (v) review, comment and implement any recommendations requested by advisers to the insurance providers.

8.6 PROTECTION OF THE ENVIRONMENT

- (a) The Operator shall take all necessary steps to protect the environment and to limit damage and nuisance to people and property in compliance with Applicable Law.
- (b) The Operator shall ensure that emissions, surface discharges and effluent from Operator's activities shall not exceed the values prescribed by Applicable Laws and Approvals.

8.7 SECURITY OF AND ACCESS TO THE SITE

- (a) The Company shall give the Operator access to the Site to carry out the Works. The Operator is deemed to have full knowledge of and to have satisfied itself as to local, regional, national and any other conditions affecting the Site shall bear all risks associated with foreseen Site conditions.
- (b) The Operator and its operations and activities shall comply with:
 - (i) Applicable Laws and Approvals;
 - (ii) requirements of any public authority;
 - (iii) Good Industry Practice;
 - (iv) the Company's Requirements;
 - (v) Standards and Requirements and measures required for keeping unauthorised persons off the Site; and
 - (vi) any specific safety procedures and/or requirements that may apply for the access to the Site.
- (c) Authorised persons shall be limited to the Operator's personnel, any of the Company's personnel and to any other personnel notified to the Operator, by (or on behalf of) the Company, as authorised personnel of the Company's other contractors on the Site.
- (d) The Operator shall take such measures as are required to ensure the protection and security of all the Spare Parts, consumables, materials, construction equipment and tools from damage or loss during Term.

8.8 PASS-THROUGH PRINCIPLE

The Operator is entitled to any extension of time, compensation, or other relief or entitlement under this Agreement available to and received by the Company under the Power Purchase Agreement in relation to the same event or circumstance ("**Equivalent Project Relief**").

9 INSURANCES

- (a) The Operator is required to take appropriate insurance policies insuring its personnel (against death/injury etc.), its vehicles and its equipment (against damage, theft or loss etc.) for the duration of this Agreement.
- (b) The Operator is also required to take general third-party liability insurance for loss or damage to third party/ property or death or injury to any person arising out of or in connection with the performance of this Agreement.

10 LIABILITY

- (a) The Operator shall be liable to the Company for any Claims suffered or incurred by the Company due to the Operator's performance or non-performance of its obligations under this Agreement (including any performance or non-performance of its obligations which are carried out by the Operator or any of its Affiliates or Subcontractors), regardless of whether such performance or non-performance was carried out intentionally or negligently.

- (b) The Operator's overall liability for any and all causes under the Agreement shall not exceed the value of the Service Fee for each year ("**Annual Liability Cap**"), except in the following cases:
- (i) to the extent of amounts received (or, but for a vitiating act by the Operator under an insurance policy, would have been received) in connection with an insured risk;
 - (ii) for its failure to maintain in full force and effect its required insurance policies under this Agreement or if the insurer providing such insurance policy becomes bankrupt or insolvent;
 - (iii) to the extent of any claim relating to the occupation or misuse of or encroachment upon the Premises and/or the Facility by the Operator or any of its subcontractors;
 - (iv) to abandonment, fraud, fraudulent misrepresentation, corrupt acts, gross negligence, deliberate default or wilful or reckless misconduct by the Operator or any of its Subcontractors;
 - (v) to the extent of any penalties under applicable law caused by the operator; or
 - (vi) to the extent of any indemnities due under Clause 15.
 - (vii) Liquidated Damages
- (c) Neither Party is liable to the other for any Consequential Loss, except in respect of:
- (i) to the extent of amounts received (or, but for a vitiating act by the Operator under an insurance policy, would have been received) in connection with an insured risk;
 - (ii) in respect of any failure to maintain in full force and effect its required insurance policies under this Agreement or if the insurer providing such insurance policy becomes bankrupt or insolvent;
 - (iii) for abandonment, fraud, fraudulent misrepresentation, gross negligence, corrupt acts, deliberate default or wilful or reckless misconduct by Operator or any of its Subcontractors;
 - (iv) to the extent of any penalties prescribed by law and ruled and enforced by courts and liability with cannot be capped by Applicable Law;
 - (v) personal injury to or death of any person;
 - (vi) legal liability for third party claims and damage to third party property;
 - (vii) to the extent of any failure to deliver clear title, breach of warranty claims, or breach by Operator of its lien obligations under this Agreement.
- (d) Amounts received by the Operator under any insurance policy prescribed under this Agreement or applicable law, and amounts that would have been received pursuant to those insurance policies but for an Operator failure to maintain or vitiating act under any insurance policies, shall be included in the calculation of any limitation on the Operator's liability under the Agreement.

11 SECURITY

11.1 PERFORMANCE BOND

- (a) The Operator shall deliver the Performance Bond as of the Effective Date.
- (b) The Performance Bond shall be valid until all obligations of the Operator under this Agreement are fully discharged.
- (c) All costs associated with providing and maintaining the Performance Security shall be borne by the Operator.

- (d) The Company shall release the Performance Bond within fifteen (15) days from the date when the Operator has complied with all its obligations. In the event that the Performance Bond has an expiry date that will occur earlier than the discharge of all Operator's obligations under this Agreement, the Operator shall procure, on or before the date falling thirty (30) days before the expiry of the Performance Bond, a replacement Performance Bond that satisfies the requirements of this Agreement and that such replacement performance security takes effect at least ten (10) days prior to the expiry of the existing Performance Bond being replaced.
- (e) The Company shall be entitled to draw on the Performance Bond up to the full outstanding amount of the Performance Bond at any time if the Operator has failed to observe or perform any of the terms, conditions or provisions of the Agreement, or the Operator has not remedied an Operator Event of Default in accordance with Clause 12.

12 TERMINATION BY THE OPERATOR

- (a) Subject to the Direct Agreement (if applicable), the Operator is entitled to terminate the Agreement by thirty (30) days' notice in writing to the Company in case an Insolvency Event affecting the Company or if the Company repeatedly fails to perform its payment obligations pursuant to this Agreement following a grace period of thirty (30) days.
- (b) On any termination under this Clause, the Operator will be entitled to payment of all Services duly evidenced and performed in accordance with the terms of this Agreement and not already paid by the Company.
- (c) Upon termination by the Operator, Clauses 13.(d) to 13.(f) (included) shall apply mutatis mutandis.

13 TERMINATION BY THE COMPANY

- (a) The Company will be entitled to terminate this Agreement in the following cases:
 - (i) an Insolvency Event affects the Operator;
 - (ii) Failure to agree on a revised service fee for as per Clauses 5.1(e)
 - (iii) a breach of Applicable Laws or any rules concerning health, hygiene, safety, working conditions or environmental protection that may be detrimental to persons or property, including without limitation the Standards and Requirements and health and safety Laws;
 - (iv) where:
 - 1. in any year, the performance is less than 80% of the Guaranteed Performance for the specific year;
 - 2. in any two consecutive years, the performance is less than 90% of the Guaranteed Performance when the Guaranteed Performance for such years is taken together,
 - (v) the Operator's liability to the Company exceeds the Annual Liability Cap on more than one occasion in any two-years rolling period;
 - (vi) failure to perform or deemed failure to perform any obligation under this Agreement;
 - (vii) incurring Liquidated Damages in excess of 20% of the aggregated Service Fees over the Term;
 - (viii) the Operator abandons the Services,
- each of (i) to (vii) (included) constituting an **"Operator Event of Default"**.

- (b) In the event of an Operator Event of Default, the Company may notify the Operator requiring the Operator to remedy such Operator Event of Default within a period to be agreed upon between both parties. In the event that the Operator fails to remedy such Operator Event of Default within such period, the Company may terminate this Agreement, such termination shall take effect at the end of this period.
- (c) The Company's election to terminate the Agreement shall not prejudice any other rights of the Company, under this Agreement or otherwise.
- (d) On termination by the Company, the Operator shall deliver to the Company legal title, free and clear of all encumbrances in relation to the Services. However, the Operator shall use its best efforts to comply immediately with any reasonable instructions included in the notice for the protection of life or property or for the safety of the Solar Power Plant.
- (e) The Operator shall, to the extent legally possible, assign to the Company all right, title and benefit of the Operator in any subcontracts between the Operator and its Subcontractors, including all warranties, performance guarantees or other continuing benefits arising under such subcontracts.
- (f) The Operator shall ensure that all equipment warranties are assigned and transferred to the Company, including for any replacement/additional equipment that has been installed, and shall procure the novation of any long term service and warranty agreements with major component suppliers to the Company.
- (g) Following termination by the Company for an Operator Event of Default, the Operator shall pay to the Company all additional costs incurred in relation to such termination and the operation and maintenance of Solar Power Plant between the effective date of that termination and the date the Company has executed another operation and maintenance agreement with another operator with respect to the Solar Power Plant.

14 REVERSIBILITY

- (a) At the expiration or termination of the Agreement, for any reason whatsoever, the Operator shall carry out the operations that will enable the Company to take over the Services or to have a third party (hereinafter the "**Third Party**") take over the Services, under the best possible conditions, and without any interruption to the Services.
- (b) Accordingly, from among the persons who have participated in performing the Services, the Operator shall constitute a sufficiently staffed team to carry out the reversibility operations.
- (c) The objective of the reversibility operations is to enable the Company or Third Party to become familiar with the most recent known condition of the Services and the conditions under which they are performed, in order that they may be taken over without any interruption of service.
- (d) The Company or Third Party shall collect from the Operator, and with its cooperation, the information necessary to take over the Services. Such information shall be provided by making available operating documentation, and parameters, and by participating in a meeting specifically organized for providing technical assistance.
- (e) Reversibility operations shall be carried out during the following periods and in accordance with the terms and conditions set forth below:
 - (i) in the event all or any part of the Agreement is terminated for any reason whatsoever: the reversibility stage shall begin on the date notice of termination is given, and shall continue for a period not to exceed [one] month; and
 - (ii) if the reversibility period extends beyond the termination date of the Agreement, the provisions of the Agreement that has been terminated shall continue to apply solely during the time and for the requirements of the performance of reversibility operations.

- (f) If the Agreement expires, the reversibility stage shall begin before the expiration date for a period not to exceed 2 months. During the reversibility period, the Operator shall continue to perform the Services in accordance with the terms and conditions specified in the Agreement. If the reversibility period extends beyond the termination date of the Agreement, the provisions of the Agreement shall continue to apply solely during the time and for the requirements of the performance of reversibility operations. If the reversibility period extends beyond the termination date of the agreement both the Company and Operator shall agree on a additional service charges to be paid by the Company to the Operator.

15 INDEMNITY

The Operator shall defend, indemnify and hold harmless the Company, each the Company's shareholder, any of its Affiliates and subsidiary companies, and the Lenders (if applicable) (each, an **"the Company Indemnitee"**) from and against any and all actions, demands, claims, expenses, damages, losses, liabilities, costs, suits and proceedings (including court costs and reasonable legal fees) arising out of or in relation to:

- (a) breach of any Applicable Law(s), or of the Agreement, any act, omission, commission or deficiency in execution of the Services hereunder by the Operator, or breach of the Power Purchase Agreement caused by the Operator;
- (b) loss or damage to property including damage caused to the Solar Power Plant;
- (c) personal injury to or death of any person;
- (d) legal liability for third party claims;
- (e) breach of proprietary or intellectual property rights;
- (f) payable or unpaid taxes, duties, levies and the like for which the Operator is responsible for under the terms of the Agreement;
- (g) any defect in title to the Services or any materials and any liens, attachments, charges or the like with respect to the same;
- (h) any claim for damages to roadways, bridges, port facilities or any other transportation routes caused in connection with the Services, including during the transportation of materials to the Site;
- (i) the works or any services performed by the Operator or negligent use, misuse, waste or abuse at the Solar Power Plant by the employees, agents, Subcontractors of the Operator hereunder;
- (j) breach of the Standards Requirements, including, without limitation, any pollution or contamination caused or produced by the Operator, any Subcontractor, or any employees or agents thereof;
- (k) any failure by the Operator or its subcontractors to comply with the applicable law or any applicable permits;
- (l) any defect in title to the Services or any materials and any liens, attachments, charges or the like with respect to the same;
- (m) any disruption to existing utilities or services;
- (n) inability of any the Company Indemnitee to recover any amounts it reasonably anticipated would be recoverable under any insurance policy or warranty from manufacturer as a result of any fraud, misrepresentation, non-disclosure, negligence, breach of warranty or breach of any provision of an insurance policy by the Operator, its agents, employees or subcontractors; and
- (o) any losses arising as a result of the abandonment of the Solar Power Plant by the Operator.

in each case, caused by or arising out of an act or omission of the Operator, or any Subcontractor or any of its Affiliates or subsidiary companies.

16 FORCE MAJEURE

- (a) Except as otherwise expressly provided to the contrary in this Agreement, if either Party is rendered wholly or partly unable to timely perform its obligations under this Agreement because of a Force Majeure event (the **"Affected Party"**), that Party shall be excused from the performance affected by the Force Majeure event (but only to the extent so affected), and the Term shall be extended as reasonably necessary to cure or remedy the Force Majeure event and its consequences, provided, that:
 - (i) the Affected Party has notified the other Party in writing within seven (7) days of becoming affected by any Force Majeure that has or is likely to have any substantial detrimental effect on the ability of the Affected Party to perform any or all of the terms and conditions contained in this Agreement and will give particulars of the Force Majeure and the likely duration of the Force Majeure and of any likely or resulting disability or effect of that Force Majeure ; and
 - (ii) the Affected Party uses all reasonable efforts to mitigate or remedy its inability to perform its affected obligation.
- (b) The unaffected Party shall use reasonable efforts to assist the affected Party to remedy the effects of the Force Majeure event and facilitate the affected Party's continued performance under this Agreement.
- (c) If a Force Majeure event continues for a period of one hundred and eighty (180) consecutive days or more, then at any time after such period, the Company shall have the right to terminate this Agreement without fault or further liability to the Operator (except for amounts accrued but unpaid) in accordance with this Agreement, and Clauses 13.(d) to 13.(f) (included) shall apply mutatis mutandis.

17 CONFIDENTIALITY

- (a) Each Party undertakes to the other Party to keep confidential all Confidential Information (written or oral) concerning the business and affairs of the other Party (and its related entities) which it has obtained or received as a result of discussions leading up to entry into this Agreement, or which it has obtained during the course of this Agreement. The Operator shall not publish, permit to be published, or disclose any particulars of the Services in any trade or technical paper or elsewhere without the prior written approval of the Company.
- (b) Each of the Parties (the **"Receiving Party"**) receiving Confidential Information from or on behalf of the other Party (the **"Disclosing Party"**) commits towards such Disclosing Party:
 - (i) not to make any use whatsoever of the Confidential Information except for the purposes of the providing or receiving the Works or the use, maintenance, repair, modification or operation of the deliverables, Services and/or the Solar Power Plant provided, however, that nothing in this Clause shall restrict the Company from freely using and exploiting its rights pursuant to this Agreement or freely disclosing Confidential Information to its Lenders, advisors or Affiliates;
 - (ii) not to reveal any Confidential Information to any third parties whomsoever provided, however, (i) Confidential Information may be revealed by the Receiving Party to employees, officers, Affiliates and Subcontractors of the Receiving Party or its Affiliates on a legitimate need-to-know basis in relation to the purpose of this Agreement, (ii) the Company may reveal Confidential Information of the Operator also to its owners, Financiers, prospective financiers, and advisors, (iii) the Receiving Party shall ensure that such employees, officers, Affiliates and Subcontractors, owners, Lenders, prospective financiers and advisors, as the case may be, are bound by law or contract to confidentiality and non-use of

Confidential Information in a manner that is not less stringent than this Clause and (iv) the Receiving Party shall be liable for the compliance of such employees, officers, affiliates, Subcontractors, owners, Lenders, prospective financiers and advisors with this Clause; and

- (iii) to treat Confidential Information at least with the same diligence and care as the Receiving Party's own confidential information.
- (c) Each Party may disclose Confidential Information of the other Party to the extent it is required to do so by order of a court or regulatory body of competent jurisdiction. In such an event, the Party disclosing such Confidential Information of the other Party shall notify such other Party of the disclosure (unless expressly prohibited from doing so by a competent authority).
- (d) This Clause shall remain effective for a period of two (2) years from the expiry or termination of this Agreement.

18 CHANGE IN LAW

- (a) If any Change in Law occurs that has an adverse effect of more than 10% per Quarter on the reasonably expected economic benefit to either Party of performing its obligations under this Agreement (having taken into account the effect of all previous Changes in Law) and (ii) makes any provision of this Agreement illegal or impossible to give effect to or otherwise prevents either Party from performing its obligations under this Agreement, then the Parties shall, within twenty (20) days following receipt by the unaffected Party from the affected Party of notice of such Change in Law, meet and attempt in good faith to negotiate amendments to this Agreement as are reasonably necessary to preserve the economic value of this Agreement to both Parties, provided that the Operator has:
 - (i) provided the Company with evidence as to how the Change in Law has affected the cost of providing the Services;
 - (ii) provided the Company with evidence demonstrating that any expenditure that has been avoided has been taken into account in amending the Service Fees;
 - (iii) sent the written notice of such Change in Law to the Company within thirty (30) days of the occurrence of the Change in Law.
- (b) If the Parties are unable to agree on such amendments within such twenty (20) day period, then both parties will be entitled to terminate that Agreement and Clauses 13.(d) to 13.(f) (included) shall apply.
- (c) Unless otherwise decided in writing by the Parties, if any Change in Law occurs, the Operator shall not be released from performing its obligations under this Agreement until the Parties have reached an agreement or the Company has terminated that Agreement.
- (d) If the Operator terminates the agreement under this Clause, Clause 12 shall apply.

19 GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the Governing Law.

20 DISPUTE RESOLUTION

20.1 GENERAL TERMS

Performance of this Agreement (and the Services) shall continue during any dispute resolution process referred to in this Clause.

20.2 MEDIATION

In the event of a dispute arising out of or relating to this contract, including any question regarding its existence, validity or termination, (a Dispute) the Parties shall first seek settlement of that Dispute by mediation in accordance with the Mediation Rules of the LCIA, which Rules are deemed to be incorporated by reference into this Clause.

20.3 ARBITRATION

- (a) If the Dispute is not settled by mediation within thirty (30) days of the commencement of the mediation, or such further period as the parties shall agree in writing, the Dispute shall be referred to and finally resolved by arbitration under the Arbitration Rules of the International Chamber of Commerce ICC, which Rules are deemed to be incorporated by reference into this Clause, by three arbitrators appointed in accordance with these Rules (an Arbitral Tribunal). The arbitration shall be conducted in English, and the seat of the arbitration will be Paris.
- (b) The award rendered shall apportion the costs of the arbitration.
- (c) The award in such arbitration shall be final and binding upon the parties to this Agreement and judgment thereon may be entered in any court having jurisdiction for its enforcement.
- (d) The Parties shall ensure that any arbitrator appointed to act under this Clause will agree to be bound to certain confidentiality obligations with respect to the terms of this Agreement and any information obtained during the course of the arbitration proceedings.

21 MISCELLANEOUS

21.1 WAIVER

- (a) Waiver by either Party of any default by the other Party in the observance or performance of any provision of or obligations under this Agreement:
 - (i) shall not operate or be construed as a waiver of any other or subsequent default hereof or of other provisions or obligations under the Agreement;
 - (ii) shall not be effective unless it is in writing and executed by a duly authorised representative of such Party; and
 - (iii) shall not affect the validity or enforceability of the Agreement in any manner.
- (b) Neither the failure by either Party to insist on any occasion upon the performance of the terms, conditions and provisions of the Agreement or any obligation hereunder nor time or other indulgence granted by a Party to the other Party shall be treated or deemed as waiver/breach of any terms, conditions or provisions of the Agreement.

21.2 SURVIVAL

Termination of the Agreement (i) shall not relieve the Parties of any obligations already incurred hereunder which expressly or by implication survives termination hereof, (ii) shall not relieve either Party of any obligations or liabilities for loss or damage to the other Party arising out of or caused by acts or omissions of such Party prior to the effectiveness of such termination or arising out of such termination, and (iii), for the avoidance of doubt, surviving provisions shall include, without limitation, Clause 8.1 (Representations, Warranties and Obligations of the Operator), Clause 9 (Insurance), Clause 10 (Liability), Clause 14 (Reversibility), Clause 15 (Indemnity), Clause 19 (Governing Law), Clause 20 (Dispute Resolution), and this Clause.

21.3 AMENDMENTS AND ASSIGNMENT

- (a) any amendment to this Agreement shall be in writing and shall have no effect before signed by duly authorised representatives of both Parties, and
- (b) neither Party may assign, charge, pledge or transfer (including by way of novation) any of its benefits, interests, obligations or liabilities, or rights under this Agreement without the prior written consent of the other Party, except that the Company may, without the prior written consent of the Operator, assign, pledge or transfer (including by way of novation) any of its benefits, interests, obligations or liabilities, or rights under this Agreement, charge or otherwise encumber all of its rights to the Lenders (and the Operator shall assist in the financing arrangements) or to one of its Affiliates.

21.4 SEVERABILITY

If for any reason whatsoever any provision of the Agreement is or becomes invalid, illegal or unenforceable or is declared by any court of competent jurisdiction or any other instrumentality to be invalid, illegal or unenforceable, the validity, legality or enforceability of the remaining provisions shall not be affected in any manner, and the Parties shall negotiate in good faith with a view to agreeing upon one or more provisions which may be substituted for such invalid, unenforceable or illegal provisions, as nearly as is practicable. Provided failure to agree upon any such provisions shall not be subject to dispute resolution under this Agreement or otherwise.

21.5 FURTHER ASSURANCES

The Operator shall cooperate with the Company, both during and after the term of this Agreement, in the procurement and maintenance of the Company's rights to intellectual property created hereunder and to execute, when requested, any other documents deemed necessary or appropriate by the Company to carry out the purpose of this Agreement.

21.6 CONFLICT OF INTEREST

The Operator acknowledges that having regard to the sensitivity and confidentiality of the documents, business plans, etc that will or are likely to be shared with the Operator in respect of the Services neither the Operator nor any of its staff shall engage, either directly or indirectly, in any business or professional activity which would conflict with the duties and obligations assigned to them under the Agreement. The Operator shall inform and notify the Company immediately of any actual or potential conflict together with recommendations as to how the conflict can be avoided.

21.7 COUNTERPARTS

This Agreement may be executed in one or more counterparts, each of which shall be deemed as original and all of which shall be taken together and deemed to be one instrument.

21.8 SUBCONTRACT

Operator may subcontract part or all of the Services. Subcontracting shall not discharge the Operator from any obligations, responsibilities or liability vis-à-vis the Company under or deriving from the Agreement.

21.9 INTELLECTUAL PROPERTY

- (a) Except to the extent otherwise expressly provided in this Agreement, each Party shall retain exclusive rights to its own intellectual property rights which either pre dates the date of this Agreement or is acquired subsequent to it, except to the extent otherwise expressly agreed to between the Parties. Nothing herein shall be construed or deem to be construed to grant by any Party to the Party any right, title or interest in any intellectual property rights.

- (b) Notwithstanding anything to the contrary contained in this Agreement, all intellectual property rights arising out of this Agreement which are created by or on behalf of the Operator either solely or jointly with the Company or for the purpose of delivery of the Services to the Company under this Agreement shall automatically vest in the Company and the Operator hereby agrees to do all such acts and to execute all such documents as are necessary to give effect to this provision.
- (c) The Operator hereby undertakes that during the discharge of its Services, it shall not violate any intellectual property rights under any Applicable Laws.
- (d) The Operator shall be liable for and shall defend, indemnify and hold harmless the Company, its representative, and Affiliates against any and all expenses, liabilities, losses, claims or proceedings the Company, its representative, and Affiliates may incur in the event:
- (e) that any of the rights granted by the Operator pursuant to this Clause are found to be invalid, ineffective or impaired in any way; and/or
- (f) of any claim by any third party (whether upheld or not) that the exercise of the rights granted by the Operator pursuant to this Clause infringes the rights of such third party.

21.10 RELATIONSHIP BETWEEN PARTIES

The Operator has been retained by the Company as an independent Operator to operate, maintain and manage the Solar Power Plant, in accordance with Good Industry Practices and the Company's Requirements. However, the Operator shall select its own employees and such employees shall be under the exclusive and complete supervision and control of the Operator. Nothing contained herein will be construed to create the relationship of principal and agent, the Company and employee, partners or joint ventures between the Company and the Operator. The Operator will be solely responsible for all compensation of its personnel, for all employee benefits, and for compliance with all applicable the Company duties and obligations in respect to its personnel, including payment of withholding taxes.

21.11 NO LIENS OR ENCUMBRANCES

The Operator shall maintain the Solar Power Plant free and clear of all liens and encumbrances resulting from any action of the Operator or work done at the request of the Operator, except for such liens or encumbrances that result directly from non-payment by the Company, of amounts due and owing to the Operator under this Agreement.

AS WITNESS this Agreement has been signed by the Parties as of the Effective Date.

Company	Operator
Name:	Name:

Position:	Position:
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ANNEX 1: SCOPE OF SERVICES

OVERVIEW

This document is intended to define the scope of services for the operation and maintenance of the [10] MWp [Anarita Solar Plant] project in [Anarita, Cyprus].

The following is a comprehensive overview of the service program to be provided by Operator:

1. General System Operation and Maintenance
2. Continuous System Monitoring and Reporting
3. Preventive and Scheduled Maintenance
4. Customer Service Support
5. Warranty & Spare Parts Inventory Management

All the services are to be carried out under healthy and safe operating conditions using proper safety equipment and measures.

The maintenance personnel shall be qualified and well trained for the O&M of a solar PV plant in order to enable them to carry out the routine service and handle the operational hazards in safe, efficient and timely manner. The responsibility of providing suitable Personal Protection Equipment rests solely with the Operator.

GENERAL SYSTEM OPERATION AND MAINTENANCE

The operation and maintenance of the system shall comprise of the following minimum services:

1. Inspection and maintenance of PV Modules and DC side of the PV plant including DC cables, combiners etc.
2. Inspection and maintenance of the AC side, from inverters to grid's point of connection
3. Inspection and maintenance of Mounting Systems
4. Inspection and maintenance of Inverters and associated cabling and combiners etc.
5. Inspection of MV stations and associated components
6. Inspection and maintenance of plant's monitoring and control equipment
7. Inspection and maintenance of Infrastructure and facility maintenance (e.g. gates, lock systems, fences, warning signs, out-door lighting, control room)

CONTINUOUS SYSTEM MONITORING

The monitoring of the system shall comprise of the following minimum services:

1. Communication services:
 - a. Remote monitoring & diagnostics of inverter, meteorological station and SCADA (if applicable)
 - b. Daily site alarm monitoring
 - c. Alarm acknowledgement and escalation within twenty-four (24) hours of any detected outage event.
2. Notify Owner of the facility regarding the production disruption
3. Monthly Performance Report

- a. Facility performance, including:
 - i. Actual generation of the system at fifteen (15) minutes interval
 - ii. % of typical year generation
 - iii. % of weather adjusted generation
 - b. Facility availability
 - c. Monthly maintenance summary
4. Annual Operating Report
- a. Facility performance
 - b. Facility availability
 - c. Annual maintenance details

PREVENTIVE AND SCHEDULED MAINTENANCE

The preventive and scheduled maintenance activities should cover the below mentioned services as minimum:

- 1. PV Modules and the DC circuit
 - a. Visual inspection - for signs of any physical damage or degradation, including bent frames or broken glass.
 - b. Replacement of the modules with fractured or damaged laminates.
 - c. Periodic cleaning of the modules.
 - d. Evaluation of any other obstacles that could lead to shading of arrays.
 - e. Visual inspection of the DC wiring, cable trays & cable routes and junction box connections for terminal loosening, cable damage etc.
 - f. Inspection of the DC junction box equipment (e.g. switching status of the circuit breakers, overvoltage protector and fuses)
 - g. Inspection of the earthing cables for the DC side of the PV plant.
 - h. Inspection and cleaning of DC combiner boxes (if applicable)
 - i. Open circuit voltage and string current measurements if required
- 2. Mounting Systems
 - a. Inspection and rectification of module mounting system / structure for rusting, damage or bending etc.
 - b. Inspection and rectification of the stability of the mounting system
 - c. Inspection and tightening of the module clamps and fixation elements
- 3. Inverters
 - a. General inspection and maintenance of the inverters as per OEM specifications
 - b. Maintenance and cleaning of intake air ducts
 - c. Maintenance of Cooling fans (if applicable)

- d. Inspection and tightening of cables and terminations
 - e. Inspect the mounting of the inverters (if applicable)
 - f. Inspection of the enclosure seals
4. Electrical BOS
 - a. Maintenance and inspection of the transformer and inductor enclosure (if applicable)
 - b. Maintenance and inspection of the auxiliary electrical components including LV/MV cabinets etc.
 - c. Maintenance and inspection of the Power components (if applicable)
 - d. Adhering to OEM prescribed maintenance for switchgear and transformers (if applicable)
 - e. Inspection for loose connections
 - f. Inspection for potential overheating of the cabinets
 - g. Inspection of the door and the locks
 - h. Inspection of the panel indicators
 - i. Inspection of the earthing system on the AC circuit
5. System Monitoring Equipment
 - a. Inspection and verification of system communications and monitoring
 - b. Inspection and verification of meteorological system's functioning and communication
 - c. Meter calibration as per the OEM specifications
6. Infrastructure and facility maintenance (e.g. gates, lock systems, fences, warning signs, out-door lighting, control room, certification of lifelines)

CUSTOMER SERVICE SUPPORT

The Operator shall at all times have a dedicated point of contact for the Company in order to be able to report emergencies and request remedial measures.

WARRANTY ADMINISTRATION AND SPARE PARTS MANAGEMENT

The Operator shall be responsible for:

1. Supervision and overseeing all the warranty repairs taking place in the solar power plant.
2. Spare parts management in accordance with the Clause 4.8
3. Guidance on obsolescence and replacement of equipment to enable efficient operation of the plant.

In addition to the above, Operator to provide the following:

- Ongoing 24/7 performance and operational status monitoring system that include energy generated & Irradiance with minimum of fifteen (15) minutes resolution;
- Preventive maintenance and inspection of system equipment once every ninety (90) days or when needed.
- Corrective maintenance & quick response to equipment failure;
- Spare parts and replacement of equipment in case of equipment failure during the equipment warranty period;

- Provision of the contact details of a technical person responsible for the operations and maintenance of the Project;
- Periodic cleaning of the modules.

The following activities are the minimum to be performed on each component of the PV plant:

1. PV Modules

PV module maintenance services shall always comply with manufacturer requirements, recommendations and standards as well all safety instructions.

a. Preventive Maintenance

The PV modules shall be cleaned, and the module glasses shall not be broken. The O&M Operator shall be responsible for cleaning of PV modules, reference cells, irradiation sensors and the pyranometers on regular basis. Operator shall ensure checking the installation and the terminals of the modules wiring system, evaluation of the terminal box' dust tightness and air tightness, and evaluation of the terminals' protection covers of all modules.

b. Corrective Maintenance

Broken or damaged PV modules shall be replaced with new PV modules.

2. Inverter

a. Preventive Maintenance

The required maintenance and the maintenance intervals shall be in accordance with manufacturer requirements and standards.

b. Corrective Maintenance

Corrective works on inverters shall be done by trained and qualified maintenance staff who can carry out these services.

3. Mounting Structure

a. Preventive Maintenance

The maintenance staff shall be visiting the PV power plant and execute a visual evaluation of the mounting structure.

b. Corrective Maintenance

Corrective maintenance could be required due to corrosion of the mounting structure.

4. Electric Installation

a. Preventive Maintenance

The maintenance of the electric installation shall be focused on two directions:

- Ensuring the correct operation of all installed elements (wires, switches, residual-current devices, etc.),
- Controlling the electrical parameters (circuits' voltage, tension, power output, etc.) of all the different parts of the installation.

In order to perform the correct operation of all equipment and components, periodical controls shall be executed, evaluating all installations in detail to avoid the accumulation of dust, rust and moist. Moreover, the periodical controls should enable to identify eventual burns, discolorations, hot spots, breakages, slack screws, damaged power points, etc.

b. Corrective Maintenance

Only authorized and trained specialists shall operate and maintain electrical installations.

5. Plant Control and Monitoring System (PCMS)

a. Preventive Maintenance

The maintenance of the PCMS shall be carried out to ensure that the power plant is correctly functioning, monitored and control as designed and specified to allow an optimum generation from the PV power plant. The preventive maintenance therefore shall ensure the correct operation of all installed elements.

b. Corrective Maintenance

Any corrective action required shall be provided to ensure the full functionality of the PV- system.

ANNEX 2: OPERATION AND MAINTENANCE ANNEX

The following table summarize the frequency of the O&M services to be performed.

D: Daily, 2W: every 2 weeks, M: Monthly, Q: Quarterly, A/2: every 6 months, A: Annually, 2A: every 2 years

	Operations & Maintenance Scope of Work	Frequency
1	Performance Guarantees	
1.01	Annual Performance Ratio Guarantee of the PV plant	A
2	Reporting and Checklists	
2.01	Monthly report	M
2.02	Annual report and performance review meeting	A
2.03	Monthly checklists (Preventive Maintenance)	M
2.04	Performance spreadsheet and data download	M
2.05	Full power assessment of plant including notification and investigation of faults	M & A
3	Operations and Spare parts management	
3.01	Site visit and perimeter check	On visit
3.02	Inventory follow-up	M
3.03	Warranty management with EOM manufacturer	When needed
4	Monitoring	
4.01	Subscription to web-based system performance monitoring service	A
4.02	Monitoring the solar plant status and performance remotely	D
5	Weather Station	
5.01	Cleaning of site pyrometer and irradiation sensors	2W & on visit
5.02	Calibration of pyrometer	2A
5.03	Complete servicing of weather station components including monitoring system inspections, testing, cleaning, tightening of cables: – Ambient temperature sensors, – Module temperature sensors, – Wind sensors, – Irradiation sensors, – Pyrometer	Q
6	PV Modules	
6.01	Visual inspection of PV modules on a monthly basis for any signs of breakage, delamination, water intrusion, loose cabling	M
6.02	Random Infrared thermography of PV modules for heat spots	A
6.03	Cleaning of PV Modules when needed to achieve Performance Guarantee.	Q and When needed
6.04	Replacing cable ties for all PV module strings and neatly organizing bundles of strings to the mounting support	When needed
7	Combiner Boxes	
7.01	Inspection of combiner boxes exterior for signs of wear and tear, cable terminations and label signage on monthly basis	M
7.02	Inspection of internal combiner box components including fuse holders, burned fuses, surge protector operation and ground terminals	M
7.03	Cleaning of combiner boxes and master fuse boxes with complete inspection annually	A
7.04	Combiner box string testing to verify correct operation of PV module strings	Q
7.05	Checking of all DC cabling from combiner boxes to master fuse boxes including insulation resistance testing & torquing	A
8	Inverters	
8.01	Monitoring of inverters on the online portal	D
8.02	Visual inspection of inverters onsite	On visit

8.03	Fan and inverter's filter cleaning	Q
8.04	Replace inverter filters (as per OEM's recommendation)	When needed
8.05	Comprehensive review of inverter internal components: – Cabling (AC / DC) – Grounding – Fuses – Firmware upgrades	Q
8.06	Inspection and replacement of signs and labels	M
8.07	Infrared scan of all breakers	A
8.08	Inspections of master fuse boxes fuses, cabling & grounding	M
8.09	Torqueing or tightening of all cables	A
9	MV Room	
9.01	Check the condition of switchgears	Q
9.02	Check the condition of breakers	Q
9.02	Complete cleaning of inverter rooms interior and exterior (If applicable)	Q
9.03	Fixing inverter room doors, locks, alignment, rust and painting (If applicable)	When needed
9.04	Inspection and replacement of signs and labels	M
9.05	Earth Pits inspection	A
10	Corrective Maintenance	
10.01	Unscheduled corrective maintenance of all PV plant components including spare parts guarantee on site	When needed
11	Mounting Support Structure & Lifeline	
11.01	Visual inspection and ongoing alignment of support structure channels with retightening of bolts, nuts and clamps of PV modules	Q
11.02	Check the condition of the mounting structure and walkways	Q
11.03	Check the presence of corrosion on the structure or clamps	Q
11.04	Check the condition of DC cables (No damages because of sharp edges, corrosion, etc.)	A/2
11.05	Check the condition of Cable trays (No damages or opened cable tray)	Q
11.06	Inspection of lifelines by competent third part consultant (certificate to be issued)	A/2

ANNEX 3: SPARE PARTS AND CONSUMABLES

Breakdown of the stock of spare parts to be initially provided by the Company:

Item	Quantity
PV modules	100 pcs
Inverter	1 pc

Breakdown of the stock of spare parts to be maintained at the Site throughout the Term:

Item	Quantity
PV modules	100 pcs
Inverter	1 pc

ANNEX 4: GUARANTEED RATIOS – LIQUIDATED DAMAGES

Guaranteed Performance Ratio:

[to be filled in on the basis of the PVSyst and accounting for annual degradation and 95% of the Design PR decreased by the amount of degradation of 0.6% per year for every year of operation]

Performance Liquidated Damages:

For each respective year, for every 1% drop in the Actual Performance Ratio compared to Guaranteed Performance Ratio, the Operator shall pay 5000 euro (Five Thousand Euro) in order to rebalance the lost revenue for the Company.

Actual Performance Ratio shall be calculated for each respective year as defined below:

The Actual Performance Ratio is defined in accordance with the following equation.

$$PR = \frac{\sum_{j=1}^N E_j}{\left(\frac{P_{nom} * \tau}{H_{STC}}\right) * \sum_{j=1}^N H_j * (1 - \beta * (T_{ref} - T_{meas j}))}$$

Where:

1. E_j = Calculated energy production over the j^{th} 15-min test interval at the revenue energy meter (kWh) in which the global inclined irradiance is $\geq 50 \text{ W/m}^2$.
2. H_j = Calculated global Plane-Of-Array irradiation over the j^{th} 15-min test interval (W / m^2)
3. H_{stc} = Standard irradiance 1000 (W/m^2)
4. P_{nom} = the nameplate Peak Power of the PV System (kWp)
5. τ = Time duration of the reporting period = 0.25 (hours) (for 15min test interval)
6. j = index running over all 15-min test intervals for the twelve (12) month period
7. N = total number of 15-min reporting periods for the twelve (12) month period
8. T_{ref} = the reference PV cell temperature according to the PVSyst Simulation ($^{\circ}\text{C}$);
9. β = Temperature coefficient of power according to modules data sheet (-ve value to be inserted) ($\% / ^{\circ}\text{C}$);
10. $T_{meas j}$ = measured temperature from the module temperature sensors ($^{\circ}\text{C}$)

If H_j measurements are deemed to be potentially inaccurate due to higher than expected soiling on the surface of the plane-of-array irradiation sensors, measured H_j values will be replaced by those calculated via “**Perez model transposition**” from measured Global Horizontal Irradiance values sourced from the pyranometer installed on site.

In case of EAC power control, the P_{nom} will be adjusted to account for the curtailment.

If and to the extent that the Solar Power Plant is affected by any of the following events, such events will be excluded from the performance calculation:

1. Force Majeure;
2. periods of maintenance or shutdowns initiated by the Client;
3. grid failure, unavailability or instability (including when the grid is out of bounds, Scheduled/unscheduled public electricity network downtime) or works to the grid required to satisfy EAC requirements;
4. any interruption by the Company or its personnel;
5. Vandalism acts;

6. Any misuse or acts caused by the Client or 3rd party entities that may result in degradation in the performance of the plant;
7. Any acts out of the Operator's scope that prevents the O&M team from accessing the solar plant during Scheduled or unscheduled maintenance;
8. Failure or malfunctioning of any of the equipment not under the Contractor's scope that prevent a proper operation of the solar plant;
9. a Change in Law event in accordance with this Agreement; and
10. interruption or improper use of the Solar Power Plant by the Company.